DAILY — Terms of Service

Effective as of October 30, 2026

PLEASE READ THESE TERMS CAREFULLY. SECTION 11 CONTAINS A BINDING ARBITRATION PROVISION AND A WAIVER OF CLASS ACTIONS AND JURY TRIALS THAT AFFECT YOUR LEGAL RIGHTS. YOU MAY OPT OUT OF ARBITRATION WITHIN 30 DAYS OF CREATING YOUR ACCOUNT — SEE SECTION 11.

1. Acceptance of Terms

By downloading or using DAILY, you agree to be bound by these Terms of Service. If you do not agree, do not use the app.

2. Description of Service

DAILY is a personal productivity and task management application that helps users track tasks, manage follow-ups, and prioritize work. Some features require a paid subscription.

3. Assistant Features

DAILY includes optional assistant features to help you organize your work: the Priority Assistant, which suggests an order for your tasks using an algorithmic model based on factors such as due dates, priority, and dependencies; and the Detail Assistant, which proposes task details (such as a location, estimated duration, or business information) from the information you provide.

Important limitations:

- These features provide suggestions only and may be inaccurate, incomplete, or inappropriate for your specific situation.
- They provide general productivity assistance only and do **not** provide legal, financial, medical, or any other professional advice. For tasks involving such matters, consult a qualified professional.
- You must independently verify any suggestion before relying on it, and you are solely responsible for all decisions and actions you take.
- Business information (such as opening hours, phone numbers, and websites) is sourced from third-party providers and may be incomplete, outdated, or inaccurate — verify it directly with the business before relying on it (for example, before travelling to a location).
- To the fullest extent permitted by law, DAILY disclaims all liability for any harm, loss, or damage arising from your use of these suggestions.

Connected AI Assistants

You can choose to let a third-party AI assistant, such as Siri (Apple), ChatGPT (OpenAI), Claude (Anthropic) or Gemini (Google), work with the tasks in your DAILY account. This is off by default. You turn it on in Settings › AI Assistants and can turn it off at any time, which immediately blocks every connected assistant. When it is on:

- A connected assistant can read your tasks, including tasks friends have shared with you, and can create and change them: their title, description, due date, notes, location and list. It can also share a task you own with your friends or groups. It cannot complete or delete tasks, delete notes, remove anyone from a task, or change your account.
- Third-party assistants are operated by their providers, not by DAILY. Your use of them is governed by each provider's own terms and privacy policy.
- AI assistants can misunderstand requests, for example the wrong date, time, list or wording. Review what an assistant does; you are responsible for its actions as if you had taken them yourself. You can see the past 7 days of its actions in Settings › AI Assistants.
- Assistants and their usage allowances. Connected assistants run on their providers' services and may use tokens, credits, messages or other allowances under your plan with them. DAILY limits how often an assistant can use DAILY and how much information DAILY returns, but DAILY cannot see, control, predict or guarantee how many tokens or other allowances an assistant uses. You are responsible for that usage and any resulting charges, and to the fullest extent permitted by law DAILY is not responsible for overuse, including overuse caused by loops, errors or automated runs. DAILY may change these limits or stop an assistant at any time.
- To the fullest extent permitted by law, DAILY is not responsible for the behavior, output or availability of any third-party assistant.

4. Subscriptions, Billing, and Refunds

Certain features of DAILY require a paid subscription ("Premium"). Subscriptions are sold and processed through the Apple App Store or Google Play Store — not by us. Subscription fees are charged to your app store account, and the price, billing period, and renewal terms that apply are the ones shown to you at the time of purchase. Unless you cancel before the end of the current period, your subscription renews automatically at the then-current price. You may cancel at any time in your app store account settings; cancellation takes effect at the end of the current billing period, and you keep access until then.

Refunds. Because your purchase is made through an app store, refunds are governed by that store's policies rather than ours:

- **Apple App Store.** Apple is the seller of record for App Store purchases. Refund requests are made to Apple (at reportaproblem.apple.com) and are granted or denied **by Apple at its sole discretion**. We cannot issue, approve, reverse, or compel a refund for an App Store purchase, and we have no control over the outcome of a request you make to Apple.
- **Google Play.** Google handles refund requests made within its own refund window. After that window, Google directs users to the developer. We will review those requests in good faith, but except where applicable law or Google Play policy requires otherwise, we do not offer refunds for subscription periods that have already begun or for partially used periods.

We do not provide pro-rated refunds for unused time, and deleting the app does not cancel your subscription or entitle you to a refund — you must cancel through your app store account.

Nothing in this section limits any refund, cancellation, or withdrawal right you have that cannot be waived under the consumer law that applies to you — including, for consumers in the European Economic Area and the United Kingdom, the statutory right to withdraw from a purchase of digital content within 14 days, subject to the conditions of that law.

5. User Responsibilities and Account Security

You are solely responsible for the accuracy and completeness of any information you enter into DAILY. You are responsible for maintaining the confidentiality of your account credentials and for all activity under your account, and you agree to notify us immediately of any unauthorized use of your account. You agree not to use DAILY for any unlawful purpose, or in any way that could damage, disable, or impair the app or interfere with any other party's use of it.

6. Intellectual Property

All content, features, and functionality of DAILY — including but not limited to text, graphics, logos, and software — are the exclusive property of DAILY and its operators and are protected by applicable intellectual property laws. You may not reproduce, distribute, or create derivative works without express written permission.

7. Privacy

Your use of DAILY is subject to our Privacy Policy, which is incorporated into these Terms by reference. By using DAILY, you consent to the collection and use of your information as described in the Privacy Policy.

8. Termination

We reserve the right to suspend or terminate your access to DAILY at any time, with or without notice, for conduct that violates these Terms or is otherwise harmful to other users, to us, or to third parties.

9. Disclaimer of Warranties

DAILY is provided on an "AS IS" and "AS AVAILABLE" basis without warranties of any kind, either express or implied, including but not limited to warranties of merchantability, fitness for a particular purpose, or non-infringement.

10. Limitation of Liability

To the fullest extent permitted by law, DAILY and its operators shall not be liable for any indirect, incidental, special, or consequential damages arising from your use of the app, including damages arising from reliance on suggestions provided by the assistant features.

11. Dispute Resolution — Binding Arbitration and Class Action Waiver

Please read this section carefully — it affects your legal rights.

Informal resolution first. Before filing any claim, you and we each agree to first try to resolve the dispute informally. Send a written description of the dispute to support@leone-labs.com. You and we agree to negotiate in good faith for at least 60 days from receipt of that notice before starting an arbitration or lawsuit. Most concerns can be resolved this way, quickly and at no cost.

Binding arbitration. Except as described under "Exceptions" below, any dispute, claim, or controversy arising out of or relating to these Terms or your use of DAILY that is not resolved informally will be resolved by binding arbitration on an individual basis, rather than in court. The arbitration will be administered by the American Arbitration Association ("AAA") under its Consumer Arbitration Rules, available at www.adr.org. The Federal Arbitration Act governs this Section. The arbitrator may award the same relief on an individual basis that a court could award to an individual. Arbitration will be conducted by videoconference or written submissions, or — if you prefer — in person in the county where you live or another mutually agreed location. Payment of filing, administration, and arbitrator fees is governed by the AAA's Consumer Arbitration Rules; we will pay all such fees and costs that those rules assign to us.

Exceptions. Either party may (1) bring an individual claim in small-claims court, and (2) seek injunctive or other equitable relief in a court of competent jurisdiction to prevent the actual or threatened infringement or misuse of intellectual property rights.

CLASS ACTION AND JURY TRIAL WAIVER. YOU AND WE EACH WAIVE THE RIGHT TO A TRIAL BY JURY AND THE RIGHT TO PARTICIPATE IN A CLASS ACTION, CLASS ARBITRATION, OR ANY OTHER REPRESENTATIVE PROCEEDING. Disputes may be brought only on an individual basis, and the arbitrator may not consolidate or join more than one person's claims. If a court decides that this class action waiver cannot be enforced as to a particular claim, then that claim — and only that claim — must be brought in court, and the remainder of this Section continues to apply.

Your right to opt out. You may reject this arbitration provision entirely. To opt out, email support@leone-labs.com within 30 days of first creating your DAILY account. The subject line of your email must contain the word "ARBITRATION" (for example: "Arbitration Opt-Out"), and your email should include your name and the email address associated with your account. Opting out affects only this arbitration provision — the rest of these Terms continues to apply — and has no effect on your ability to use DAILY.

Coordinated filings. If 25 or more arbitration demands raising similar claims are filed against us by the same or coordinated counsel, you and we agree that the demands will be administered in staged batches under the AAA's applicable multiple-filing procedures, with fees assessed as those procedures provide, to ensure fair and efficient resolution.

Severability. Except as stated above regarding the class action waiver, if any part of this Section is found unenforceable, the remaining parts remain in full force and effect.

12. Governing Law

These Terms, and any dispute arising out of or relating to them or to DAILY, are governed by the laws of the State of Connecticut, without regard to its conflict-of-laws principles, except that the Federal Arbitration Act governs Section 11. If a claim proceeds in court under the Exceptions in Section 11, you and we consent to the jurisdiction and venue of the state and federal courts located in Connecticut, unless applicable consumer protection law gives you the right to litigate in your home forum.

13. Changes to Terms

We may update these Terms at any time. Continued use of DAILY after changes constitutes acceptance of the new Terms.

14. Eligibility and Minimum Age

DAILY is intended only for individuals who are at least 16 years old. By creating an account and using DAILY, you represent and warrant that you are 16 years of age or older. If you are under 16, you must not use the app. If we become aware that a user is under 16, we may suspend or terminate the account and delete the associated data.

15. Service Availability

We aim to keep DAILY available and syncing reliably, and we target **99.9% availability of our sync service, measured over a rolling 12-month period**. That figure is a goal we design and operate toward. It is **not** a guarantee, a warranty, or a service level agreement, and failing to meet it does not entitle you to any credit, refund, or other remedy.

DAILY also depends on services we neither operate nor control, and an interruption in any of them can make part or all of the app unavailable through no fault of our own. These include cloud hosting, database, authentication, and push notification providers; the Apple App Store and Google Play; your device's operating system and its calendar, location, and notification services; third-party business-information providers; and your own network connectivity. Availability is further affected by scheduled and emergency maintenance and by events beyond our reasonable control, including outages, force majeure, and acts of third parties. Time lost to any of the above is excluded from the target described above.

We may modify, suspend, or discontinue any feature of DAILY, or the app as a whole, at any time. If we discontinue the service entirely, we will make reasonable efforts to give you advance notice and an opportunity to export your data.

DAILY is designed to keep working offline for core task management, and changes you make offline are synced when connectivity returns. This section is in addition to, and does not limit, the disclaimer of warranties in Section 9 or the limitation of liability in Section 10.

16. Contact

For questions about these Terms, contact us at support@leone-labs.com.

The English version of these Terms is legally binding. Translations are provided for reference only.